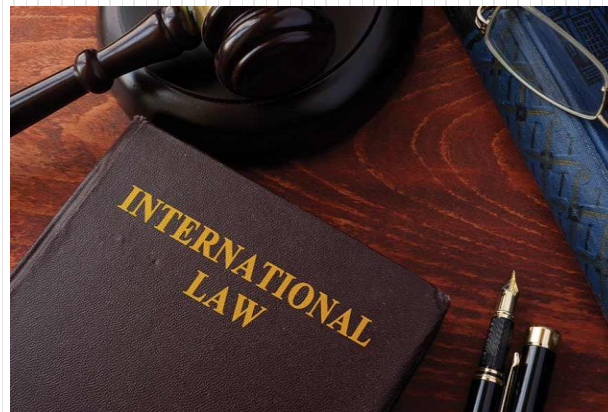


Public International Law

Chapter Six

State Responsibility under International Law



Meaning of State Responsibility

- In international law, state responsibility refers to the liability of one state to another for the non-observance of the obligations imposed by the international legal systems.
- It is based on the doctrine of equality of states and state sovereignty.
- If one state commits an internationally wrongful or unlawful act against the other state then international responsibility is established between the two.

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- The Draft Articles on the Responsibility of States for Internationally Wrongful Acts were adopted by the international law commission in 2001.
- A state is held responsible for an act if it fails to honor its obligations under a treaty if it violates the territorial sovereignty of another state, if it injures the diplomatic representatives of another state, or if it mistreats the nationals of another state.

The Nature of State Responsibility

- A sovereign state owes a responsibility towards its own citizens and those of the aliens who are on its soil.
- On the breach of this responsibility, the issue can be taken to the international forums on behalf of the aggrieved party.
- If a state by its acts commits a breach of an international obligation, it incurs international responsibility.
- ICJ in the Corfu Channel Case (1949) held Albania liable for the absence of a warning of the danger of mines laid in her territorial waters.

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- The ICJ stated “these grave omissions involve the international responsibility of Albania to pay compensation to UK for the damage and loss of human life which resulted from them”.
- **Rules of State Responsibility**
- **Primary rules (substantive rules of international law)** stem from treaty agreements.
- **Secondary rules (the law of state responsibility)** specify the consequences of a breach in the primary rules.

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- Where primary rules are voluminous, reflecting the multitude of bilateral and multilateral treaties between states, secondary rules are parsimonious.
- With respect to the secondary rules, they are succinctly encoded within **the 59 articles of Responsibility of State for Internationally Wrongful Acts.**
- The laws of state responsibility are the principles governing when and how a state is held responsible for a breach of an international obligation.

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- The rules of state responsibility determine, in general, when an obligation has been breached and the legal consequences of that violation.
- In this way they are “secondary” rules that address basic issues of responsibility and remedies available for breach of “primary” or substantive rules of international law, such as with respect to the use of armed force.
- The rules can be studied independently of the primary rules of obligation.
- They establish:
 1. The conditions of actions to qualify as internationally wrongful,

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2. The circumstances under which actions of officials, private individuals and other entities may be attributed to the state,
 3. General defenses to liability, and
 4. The consequences of liability.
- Until recently, the theory of the law of state responsibility was not well developed.
 - The position has now changed, with the adoption of the **Draft Articles on the Responsibility of States for Internationally Wrongful Acts** by the International Law Commission in August 2001.

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- The Draft Articles are a combination of codification and progressive development.
- They have already been cited by the International Court of Justice and have generally been well received.
- Although the Articles are general in coverage, they do not necessarily apply in all cases.
- Particular treaty regimes, such as the General Agreement on Tariffs and Trade and the European Convention on Human Rights, have established their own special rules of responsibility.

Elements of State Responsibility

1. There has to be an act or omission violating a rule of international law – unlawful act or we can call it internationally wrongful act in which a responsibility can be attributed to its consequences.
2. This act must cause damage or loss.
3. This act must be attributable or imputable to a person of international law. (ultra virus act)
4. There should not be terminating responsibility or circumstances precluding responsibility.

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1. An unlawful act or omission (internationally wrongful act)

- There are opposing approaches to the nature of this act or omission:
- **The Principle of Objective Responsibility (the Risk Theory)**: maintains that once an unlawful act has taken place and has cause damage that state will be responsible irrespective of good or bad faith.
- This approach does not ask **culpability or fault**.

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- **Substantive Responsibility (the Fault Theory)**: there must be element of intention (intentional or negligent conduct).
- It is necessary for international responsibility.

2. The issue of Injury or Damage:

- In fact, there is debate in international law about the role of harm or damage in the law of state responsibility.
- Some claimed that the state must have suffered some form of actual harm or damage before responsibility can be attributed.

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- But in the draft there is no general requirement of harm or damage.
- In some circumstances, mere breach of an obligation will be sufficient to give rise to responsibility like minor infringement of the inviolability of an embassy or consular building.
- In such cases of breach, with no damage, the aim of asserting responsibility may be to avoid repetition of the problem rather than compensation.

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- There are some basic principles regarding damage.
 1. The harm must occur against a ‘protected right’ instead of a ‘benefit’. E.g., termination of a foreigner’s tax privileged tax status in another country would not create international responsibility.
 2. There must a distinction between ‘direct damage’ and indirect damage’.
- Direct damage means the an avoidable consequences of an internationally wrongful act.
- But indirect one is the damage that occurs as a result of a direct damage.

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- E.g., 19th century UK's selling of the armed ship "Alabama" to the South America (confederate north union).
 - The attribution took into consideration the causality created by this ship but not the "rise of ship insurance prices" and "rise in the prices of ship transportation".
3. Material damage: since 1920's not only the material one but also the "mental sufferings of relatives of the person killed are taken into consideration".

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4. Internationally wrongful act may damage the “international legal person” directly or through its citizens, like inhuman treatment to the diplomatic agent may be deemed as damage to state.
 - The institution or the concept of “diplomatic protection” developed as a result of this connection.
3. ***The Question of Imputability (attribution)***
 - Another important point is even if any organ or official of a state acts “ultra vires” (acts beyond their legal capacity, excess of authority, contravening instructions), acts or omissions of that organ may be attributable to the state.

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- In 1920's a French national was shot and killed by the members of the Mexican Army without any official instruction to them to do so.
- But the tribunal held Mexico responsible for these ultra vires acts and attributable to the state of Mexico.
- Organs, officials or agents of states when they act in their official capacity as organs of the state, their acts and omissions shall be regarded as those of the state even when they contravene the internal law or directives.
- Therefore one must pay attention to the employment of agents carefully.

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- Normally, a state is not responsible for the acts of mass or of private individuals.
- Their conduct will only be attributable to the state:
 1. If they were acting under the authority or control of the state.
- E.g., during the case of Nicaragua, the ICJ searched “effective control” of the USA over the conducts of the contra rebels in order to attribute the responsibility to the USA.
- Please also remember the Case of Loizidou.

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- Under draft articles on state responsibility, special concepts were used – if the persons is in fact acting on the instructions of or under the direction of or under the control of that state in carrying out of that conduct the state is attributable.
- 2. Or if the state adopts their acts as its own.
- E.g., in the Tehran Hostages Case, the ICJ hold that “although initially the students who took the control of the US embassy in Tehran were not acting as agents of Iran.

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- But a subsequent decree of Ayatollah Khomeini endorsing this occupation “translated these acts into acts of Iran”.
- 3. Or if they “empowered to exercise elements of governmental authority”.
 - E.g., acts of “private security firms authorized to act as prison guards or when privatized or state-owned airlines exercise certain immigration controls.
- 4. Or if the state failed to prevent the conduct.
 - E.g., special duty to protect embassy or consulate buildings – in the Tehran Case the ICJ held Iran responsible for not to protect the Embassy of the USA.

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- Another point is related with the “time factor”.
- Basic principle: a state can only be responsible for breach of an obligation if the obligation is in force for that state at the time of the alleged breach + violation.
- This principle is also reflected in the draft article – an act of a state does not constitute a breach of an international obligation unless the state is bound by the obligation in question at the time of the violation.
- Certain wrongful acts may be “instantaneous” while some of them can continue over a period of time.

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- E.g., convention entered into force for that state is an important point – in the Loizidou Case, the ECHR said continuing exclusion of Mrs. Loizidou from access to her property in TRNC continued after the 1974 military operation of Turkey.

4. *Circumstances Precluding Responsibility – Wrongfulness*

- These are excuses which transform a wrongful act that would otherwise constitute an unlawful act.
- N.B. none of these circumstances can operate to excuse a conduct which violates a peremptory norm of international law under the draft articles.

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- Defenses/Exceptions to State Responsibility
 1. Consent (Article 20)
 2. Self defense (Article 21): it should be in conformity with the UN Charter (Article 51) (armed conflict).
 3. Countermeasures (Article 22): self help in times of need
 4. Force majeure (Article 23):
 5. Distress (Article 24): in cases where human life is at stake.
 6. Necessity (Article 25): to safeguard an essential interest against a grave and imminent peril.

Legal Consequences of State Responsibility

- When any state has done international wrongful act then it involves legal consequences.
 - These involves two stages.
 - *Step 1: it aims to cease the wrongful act or conduct.*
 - *Step 2: it makes full reparation for the injury caused.*
 - The draft articles codify obligations of a responsible state.
- A. Cessation and Non-Repetition:**
- Article 30 provides that the state responsible for the internationally wrongful act is under an obligation to cease the activity and to offer an appropriate guarantee for its non-repetition.

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B. Reparation for Injury:

- Article 31 provides that the responsible state is under an obligation to make full reparation for the injury caused by the internationally wrongful act.
- Injury includes any damage caused by the internationally wrongful act of a state.
- **Forms/kinds of Reparation:** Article 34-39 of the Draft Articles codify provisions regarding reparation for injury.

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1. **Restitution:** it is given to re-establish the situation which would have existed if the wrongful act had not taken place (Article 35).
 - It may take the form of material restoration or return of the territory, person or property.
2. **Indemnity (Monetary Compensation):** restitution is not possible in most of the scenarios.
 - So indemnity is the most usual form of reparation.
 - It takes place only when restitution is available.

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3. **Satisfaction**: in the case of non-material damages, satisfaction is the normal mode of restoration.
- Article 37 (1) says that the responsible state is under an obligation to give satisfaction to other state for the injury caused by its wrongful acts in cases where restitution and compensation aren't possible.
- **Satisfaction may consist an acknowledgement of the breach, regret or formal apology.**

Serious Breaches of Peremptory Norms

- Erga omnes
- International crime and responsibility
- A different regime of responsibility than that of other international wrongful acts.
- ***Diplomatic Protection and Nationality Claims***
- Diplomatic protection is the procedure employed by the state of the nationality of the injured person to secure protection of that person and to obtain reparation for the internationally wrongful act inflicted (reparations).
- Such protection extends to both natural and legal persons.

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- It is not an obligation.
- Rather it is discretionary power of the state.
- It may be obligatory or discretionary (right to claim) under its national laws.
- All local remedies have been exhausted to claim this.
- A state can only extend diplomatic protection to its own nationals.
- There must be no doubt as to the nationality of the injured party.
- Nationality must be continuous.

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- The person concerned must be a national at the time of the injury and at the time the complaint is lodged.
- Multiple nationality can be an obstacle to diplomatic protection.
- In principle, diplomatic protection may not be exercised against another state of which the injured party is also a national, as the person concerned is regarded by that state as its own national.
- The International Court of Justice pronounced on the establishment of predominant nationality in the Nottebohm Case.

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- It is the requirement of an effective bond between an individual and a state consisting of certain mutual rights and duties for a nationality to have effect on the international plane.
- Indeed, it was decided in the *Nottebohm* that an effective link had to exist with the country of nationality for that country to be able to grant diplomatic protection to its citizen.
- Rule of exhaustion of local remedies.

Individual Responsibility

- The general rule is that a State is not responsible for the acts of private individuals.
- The state is of course an abstract entity, unable to accomplish any physical act itself.
- Just as in domestic law corporations act through their officers and agents, so in international law the state normally acts through its organs and officials.
- The first, and clearest, case of attribution is that the organs of the state (e.g. police officers and the army) whose acts are attributable to the state even in instances where they contravene their instructions, or exceed their authority as a matter of national law.

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- *No distinction is made based on the level of the particular organ in the organizational hierarchy of the state*; state responsibility can arise from the actions of the highest officials, for instance a head of state or a foreign minister.
- *Nor is any distinction made upon the basis of the separation of powers*; state responsibility may arise from acts or omissions of the legislature and the judiciary, although by the nature of things it is more common that an internationally wrongful act is the consequence of an act or acts of the executive.

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- **Second**, the rules of attribution cover situations in which individuals, not otherwise state organs, are exercising “elements of governmental authority” at the time they act.
- **Third**, acts of private individuals are attributable to the state if those individuals are acting on instructions of the state, or under its effective direction or control.
- **Fourth**, in exceptional circumstances in which there is an absence or default of governmental authority, the acts of private individuals may be attributable to the state if those individuals, in effect, step into the breach and perform necessary governmental functions.

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- *With regard to certain obligations, a state may incur responsibility even though actions have been carried out by private individuals, because the essence of the obligations was to ensure that a given result occurred.*
- For instance, if a foreign embassy is overrun by a mob, or harm is done to diplomatic staff by private individuals, as occurred with the US embassy in Tehran during Iranian revolution of 1979 to 1980, a state may incur responsibility, even if those individuals act on their own initiative,

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- *Equally, under Article V of the 1948 Convention on Prevention of the Crime of Genocide,* the obligation of a state to punish those responsible for genocide earlier on related to genocide may be breached in instances in which a state fails to punish any person responsible for the genocide, *“whether they are constitutionally responsible rulers, public officials or private individuals”*.
- *There is probably a similar rule in general international law in relation to crimes against humanity.*

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- In both cases, the basis of responsibility here is not the attribution to the state of the acts of the individuals; it is the failure by the state as an entity to comply with the obligations of prevention and prosecution incumbent on it.
- ***A somewhat anomalous instance of attribution is that covered by Article 10 of the draft article on state responsibility.***
- As was noted above, in the normal course of events, a state is not responsible for the acts of private individuals; a fortiori, it is not responsible for the acts of insurrectional movements, because by definition, an insurrectional group acts in opposition to the established state structures and its organization is distinct from the government of the state to which it is opposed.

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- However, Article 10 (1) of the draft, provides that “the conduct of an insurrectional movement which becomes the new government of a state shall be considered an act of that state under international law”.
- Article 10 (2) provides for a similar rule with respect to an insurrectional movement that succeeds in establishing a new state within the territory of a pre-existing state.
- The effect of the rule is to attribute retrospectively the conduct of the movement in question to the state.

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- In case of a successful insurrectional movement, the acts of the movement are attributed to the state as if the movement had been the government at the time of its acts, even though, if the insurrection had failed, no attribution would be possible.
- In case of the establishment of a new state, the effect is even more drastic because acts are attributed to the state retrospectively to a time when it did not yet definitively exist.

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- *Except in this case, there is no established machinery for attributing collective responsibility (e.g., for war crimes, genocide or crimes against humanity) to an armed opposition group.*
- Individual responsibility is the only possibility at the international level of ensuring a degree of responsibility for criminal acts.
- *Besides state responsibility for violations of international law, individuals may be held liable for international wrongful acts (e.g., war crimes, crimes against humanity and genocide).*

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- The recognition of individual criminal responsibility under international law is relatively recent.
- The commission of mass atrocities during the 20th century prompted the international community to recognize that individuals can be criminally responsible directly under international law and to work for the establishment of an international criminal court having jurisdiction on international crimes committed by individuals.

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- *Thus, after World War II, the principle was established that individuals-and not only states-can be addressee of obligations, commit crimes, and therefore bear criminal responsibility directly under international law.*
- As affirmed by judges in Nuremburg: “crimes against international law are committed by men, not by abstract entities, and only by punishing individuals who commit such crimes can the provisions of international law be enforced.”

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- Thus, it is now undisputed that individuals shall be punished for the commission of crimes under international law (or international crimes) that seriously damage the international community as a whole, so that the goals of prevention and deterrence can be achieved.
- ***This principle is now well expressed in the preamble of the Rome Statute of 1998.***
- The attribution of criminal responsibility to individuals does not exclude that state responsibility for the violation of international law that also potentially amount to international crimes.

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- However, individual criminal responsibility under international law possesses the same legal nature as the criminal responsibility under domestic law, whereas responsibility of states is of an international/civil nature.
- With respect to individual criminal liability, it is beyond question that today serious breaches of certain obligations owed to the international community as a whole entail individual criminal liability.
- In other words, customary international law provides for a regime of criminal responsibility with respect to individuals who commit certain international offences considered by the international community to be serious violations of its most important rules.

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- Accordingly, individuals are brought to trial before national and international criminal courts and, if their responsibility is proved, they will face criminal punishment.
- Thus, international individual responsibility is a traditional regime of criminal liability providing for the punishment of individuals who have perpetrated international crimes.
- *As for the offences entailing individual criminal liability, there is a general agreement over the recognition of the existence of at least three categories of customary international crimes, namely, the so-called Nuremberg crimes: crimes of aggression, war crimes and crimes against humanity.*

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- It is possible to ask whether two additional categories international crimes, genocide and torture, can now be listed among those offences entailing individual criminal liability under customary international law.
- Given the macro-criminal dimension of the crimes at stake, which normally involve the state apparatus and are committed by an organized group or in a systematic manner, the process of “individualization” of the responsibility encounters more than one challenge.

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- First, the issue of immunities for heads of states and other subjects under international law; second, the regulation of the modes of liability, which need to take into account the collective dimension of commission of international crimes.
- To overcome some of the difficulties, the rules of attribution of criminal liability to had been reinterpreted and new modes of liability developed.
- Moreover, the principle of personal culpability excludes collective and strict liability.

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- As a consequence, several grounds to exclude criminal responsibility are recognized.
- Finally, the enforcement of individual criminal responsibility for international crimes is the real challenge in a context of collective commission and macro-dimension of the crimes, where, moreover, the mechanisms of enforcement are not homogeneous.